



CHAPTER clxv.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Gas and Water Works Facilities Act 1870 relating to Grays Gas Hedon Gas Northampton Gas Rochford Gas and Romford Gas.

A.D. 1904.

[15th August 1904.]

WHEREAS under the authority of the Gas and Water Works Facilities Act 1870 the Board of Trade have made the Provisional Orders set out in the schedule to this Act annexed:

33 & 34 Vict.
c. 70.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Orders made by the Board of Trade as aforesaid and set out in the schedule to this Act be confirmed:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Gas Orders Confirmation (No. 2) Act 1904.

Short title

2. The Orders as amended and set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and effect.

Confirmation
of Orders in
schedule.

A.D. 1904.

SCHEDULE.

LIST OF ORDERS.

GRAYS GAS.—Order empowering the Grays Gas Company Limited to construct further works for the manufacture and storage of gas to raise additional capital and for other purposes.

HEDON GAS.—Order empowering the New Hedon Gas and Coke Company Limited to maintain continue and improve their existing gasworks to construct further works and to supply gas within the parishes of Preston and Paull and the borough and parish of Hedon in the East Riding of the county of York.

NORTHAMPTON GAS.—Order empowering the Northampton Gaslight Company to raise additional capital for the purposes of their undertaking and for other purposes.

ROCHFORD GAS.—Order authorising the maintenance and continuance of existing gasworks at Rochford in the county of Essex the construction of further works on adjacent land and the manufacture and supply of gas.

ROMFORD GAS.—Order empowering the Romford Gas and Coke Company Limited to raise additional capital to continue and maintain additional works and for other purposes.

GRAYS GAS.

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Order empowering the Grays Gas Company Limited to construct further works for the manufacture and storage of gas to raise additional capital and for other purposes.

Grays Gas.

1. This Order may be cited as the Grays Gas Order 1904.

Short title.
2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Commence-ment of Order.
3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) and of the Gasworks Clauses Act 1847 and of the Gasworks Clauses Act 1871 are (except where the same are expressly varied by the provisions of this Order) incorporated with and form part of this Order For the purposes of such incorporation the term "special Act" in the said Acts shall be construed to mean this Order and the term "company" shall mean the Undertakers.

Incorporation of Acts.
4. The Grays Thurrock Gas Order 1881 (in this Order referred to as "the Order of 1881") the Grays Gas Order 1885 (in this Order referred to as "the Order of 1885") and this Order shall be construed together except so far as such construction would be inconsistent with or repugnant to the provisions of this Order.

Construction of Order.
5. The several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings and in the construction of this Order or of any such Act for the purposes of this Order the expression "the undertaking" shall mean the undertaking of the Grays Gas Company Limited as extended by this Order.

Interpretation.

Undertakers.

6. The Grays Gas Company Limited shall be the undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Undertakers.

Additional Capital.

7. Notwithstanding the limitation prescribed by the Order of 1881 and the Order of 1885 as to the amount of the share capital of the Undertakers for the purposes of their gas undertaking the Undertakers may for the purposes of this Order and for the general purposes of their undertaking

Additional capital.

A.D. 1904.
Grays Gas.

raise further additional capital (in this Order referred to as "the further additional capital") to be issued subject to the provisions of this Order not exceeding forty-eight thousand pounds including any premium that may be obtained on the sale of any such shares under the provisions of this Order Provided that the share capital of the Undertakers in respect of their gas undertaking shall not exceed in the whole eighty-eight thousand pounds unless the Undertakers are hereafter authorised to raise further share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

New shares to
be offered by
auction or by
tender.

8. The Undertakers shall when any shares created under the provisions of this Order and forming part of the further additional capital are to be issued and before offering the same to the holder of any other shares of the Undertakers and whether the ordinary shares of the Undertakers are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Undertakers may by special resolution determine Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares and that the reserved price put upon such shares shall not be less than the nominal value thereof and notice of the amount of such reserved price shall be sent by the Undertakers in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall subject as hereinafter provided be allowed to any holder of shares of the Undertakers except that if the bidding or offer by tender of any holder of shares be the same in amount as the bidding or offer by tender of any other person the bidding or offer of such holder shall be accepted in preference.

Purchase
money of capi-
tal sold to be
paid within
three months.

9. It shall be one of the conditions of any sale of shares under this Order that the full price thereof including the premium given by any purchaser at such sale in respect thereof shall be paid to the Undertakers within three months after such sale.

Notice to be
given of sale of
shares.

10. The intention to sell any shares by auction or by tender under the provisions of this Order shall be communicated by the Undertakers in writing to the clerk of every local authority having jurisdiction within the limits of supply and to the Secretary of the Committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised by the Undertakers once in each of two consecutive weeks in one or more newspapers circulating within the limits of supply.

Shares not sold
by auction or
by tender to be
offered to
shareholders.

11. When any shares have been offered for sale by auction or by tender under the provisions of this Order and not sold the same shall be offered at the reserved price put upon the same respectively for the purpose of sale by auction or tender to the holders of the ordinary shares of the Undertakers in such manner as may be prescribed by a special resolution passed by the

Undertakers Provided always that any shares so offered and not accepted within the time prescribed by such resolution shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Order with respect to the sale of shares created under the powers of this Order and the reserve put upon such shares may upon such second or any subsequent auction or tender if the directors of the Undertakers think fit be less than the nominal value thereof and any shares not then sold shall be again offered to the holders of ordinary shares at the last-mentioned reserved price and so on until the whole of such shares are sold.

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Grays Gas.

12. Any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Undertakers but shall be expended in extending or improving their undertaking or in paying off money borrowed or owing on mortgage by the Undertakers and shall not be considered as part of the capital of the Undertakers entitled to dividend. Provided that in any case where power to borrow on mortgage or create an insurance fund is made proportionate to the paid-up capital the premium received from the sale of shares by auction or tender as herein-before provided shall for such purpose be reckoned as part of the paid-up capital.

Application
of premium
arising on issue
of shares or
stock.

13. Except as is by the Order of 1881 and the Order of 1885 and this Order expressly provided the Undertakers shall not in any year declare or make out of their profits any larger dividend on the further additional capital than seven pounds in respect of every one hundred pounds actually paid up.

Limits of
dividend on
capital.

14. The amount of all moneys borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole one-fourth of the amount of the capital of the Undertakers actually raised by the issue of shares including any premiums that may be obtained on the sale of any shares under the provisions of this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers and secured as aforesaid after the commencement of this Order.

Limit of
borrowing
powers.

15. All moneys raised under this Order shall be applied to the purposes of the Order of 1881 and the Order of 1885 and this Order to which capital is properly applicable.

Application of
money.

16. The Undertakers may on the lands shown on the deposited plan and described in the schedule to this Order annexed while they are possessed of the same construct erect and maintain a new gasholder and such machinery apparatus works and buildings as may be necessary for the manufacture and storage of gas and matters producible therefrom and the conversion of residual products arising therefrom and they may subject to the provisions of this

Power to
construct addi-
tional works.

A.D. 1904. Order upon the said lands manufacture and store gas and supply and sell the same within the existing limits of supply and may sell and dispose of the same at their works and elsewhere and they may construct and maintain and alter enlarge and renew or discontinue houses offices buildings and other works connected with the undertaking.

Grays Gas.

Lands.

Power to
purchase addi-
tional lands.

17. The Undertakers may for the purposes of their undertaking purchase or take on lease and hold any additional lands not exceeding in the whole five acres Provided always that they shall not create or permit a nuisance on any such lands and that no lands shall be used for the manufacture or storage of gas except the lands described in the schedules to the Order of 1881 or to this Order.

Miscellaneous.

Power to
contract for
sale of gas in
bulk.

18. The Undertakers may contract with any local authority company or persons beyond the limits of supply (but only with the consent in writing of the local authority of and of any company or person supplying gas under parliamentary powers within the district within which the supply is to be afforded) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon.

Costs of Order.

19. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

SCHEDULE.

GAS LANDS.

All that piece or parcel of land one acre or thereabouts in extent belonging to and in possession of the Undertakers situate on the east side of the existing gas lands of the Undertakers as described in Parts I. and II. of the schedule to the Grays Thurrock Gas Order 1881. such first-mentioned lands being bounded on the north by the road called the London Road leading from Tilbury to London on the east by lands belonging or reputed to belong to the Grays Chalk Quarries Company Limited on the south by land belonging to the London Tilbury and Southend Railway Company and on the west by the existing gas lands of the Undertakers.

HEDON GAS.

A.D. 1904.

Order empowering the New Hedon Gas and Coke Company Limited to maintain continue and improve their existing Gasworks to construct further Works and to supply Gas within the parishes of Preston and Paull and the borough and parish of Hedon in the East Riding of the county of York.

Hedon Gas.

1. This Order may be cited as the Hedon and District Gas Order 1904. Short title.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order." Commence-
ment of Order.

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) of the Gasworks Clauses Act 1847 and of the Gasworks Clauses Act 1871 are hereby incorporated with this Order except where the same are expressly varied by this Order and the said provisions of the said Gasworks Clauses Acts shall apply as well to the mains pipes and works of the Undertakers laid down and constructed before the commencement of this Order and situate within the limits of supply as defined by this Order as to any mains pipes or works which may be laid down or constructed under the authority of this Order. Incorporation
of Lands
Clauses Acts
and Gasworks
Clauses Acts.

4. In this Order the expression "the prescribed rates" means the rates of dividend authorised by this Order on the capital of the Undertakers or such rates as reduced or increased in accordance with the provisions of this Order and the several words terms and expressions to which by any Act in whole or in part incorporated with this Order or with any part of this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings and for the purpose of the incorporation of any such Act the expression "the undertaking" in such Act shall include the gasworks and works connected therewith by this Order authorised to be maintained continued and constructed. Interpretation.

5. The limits within which the provisions of this Order shall be in force and have effect (in this Order referred to as "the limits of supply") shall be the parishes of Preston and Paull and the borough and parish of Hedon in the East Riding of the county of York. Limits of
Order.

Undertakers.

6. The New Hedon Gas and Coke Company Limited shall be the undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers." Undertakers.

A.D. 1904.

*Capital.**Hedon Gas.*
Capital.

7. The share capital of the Undertakers for the purposes of the undertaking shall not exceed twenty thousand pounds consisting of the share capital already raised by the Undertakers of twelve thousand five hundred pounds namely ten thousand pounds in ordinary shares and two thousand five hundred pounds in preference shares bearing dividend at the rate of six pounds per centum per annum (in this Order called the "original capital") and of additional capital (in this Order called the "additional capital") in shares either ordinary or preference or partly in ordinary shares and partly in preference shares to be issued subject to the provisions of this Order not exceeding seven thousand five hundred pounds including any premium that may be obtained on the sale of any shares under the provisions of this Order unless the Undertakers are hereafter authorised to raise for such purposes additional share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

Additional
capital to be
offered by
auction or
tender.

8. The Undertakers shall when any of the additional capital created under the powers of this Order is to be issued and before offering the same to the holder of any other shares or stock of the Undertakers and whether the ordinary shares or ordinary stock of the Undertakers are or is at a premium or not offer the same for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall by special resolution determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal value thereof and notice of the amount of such reserved price shall be sent by the Undertakers in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock of the Undertakers except that if the bidding or offer by tender of any holder of shares or stock shall be the same in amount as the bidding or offer by tender of any other person for the same lot the bidding or offer by tender of such holder shall be accepted in preference.

Purchase
money of
capital sold
to be paid
within three
months.

9. It shall be one of the conditions of every sale of shares or stock under this Order that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Undertakers within three months after such sale.

Notice to be
given as to sale
of shares.

10. The intention to sell any shares by auction or tender under the provisions of this Order shall be communicated by the Undertakers in writing to the clerk of every local authority having jurisdiction within the limits of supply and to the Secretary of the Committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the

reception of tenders as the case may be and notice of such intention shall be duly advertised by the Undertakers once in each of two consecutive weeks in one or more newspapers circulating within the limits of supply.

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Hedon Gas.

11. When any shares or stock have been offered for sale by auction or by tender under the provisions of this Order and not sold the same shall be offered at the reserved price put upon the same respectively for the purpose of sale by auction or tender to the holders of the ordinary shares or ordinary stock of the Undertakers in the manner prescribed by special resolution passed by the Undertakers. Provided that any shares or stock so offered and not accepted within the time prescribed by such resolution shall again be offered for sale by public auction or tender in the manner and subject to the provisions of this Order with respect to the sale of shares or stock forming part of the additional capital and the reserve put upon such shares or stock may upon such second or any subsequent auction or tender if the directors of the Undertakers think fit be less than the nominal value thereof and any shares or stock not then sold shall be again offered to the holders of ordinary shares or ordinary stock at the last-mentioned reserved price and so on until the whole amount of such shares or stock is sold.

Shares or stock not sold by auction or tender to be offered to holders of ordinary shares or stock.

12. Any sum of money which may arise from the issue of any shares under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Undertakers but shall be expended in extending or improving the works of the Undertakers or in paying off money borrowed or owing on mortgage by the Undertakers and shall not be considered as part of the capital of the Undertakers entitled to dividend.

Application of premium arising on issue of shares.

13. Except as by this Order expressly provided the Undertakers shall not in any year declare or make out of their profits any larger dividends on the said original and additional capital than ten pounds in respect of every one hundred pounds actually paid up of so much of the original capital as is ordinary share capital and six pounds in respect of every one hundred pounds of so much of the original capital as is preference share capital and seven pounds in respect of every one hundred pounds actually paid up of so much of the additional capital as may be issued as ordinary capital or five pounds in respect of every one hundred pounds actually paid up of so much of the additional capital as may be issued as preference capital.

Limits of dividend on capital.

14. In case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of dividend at the prescribed rate on each class of ordinary stock or shares in the capital of the Undertakers a proportionate reduction shall be made in the dividends payable on each class.

Dividends on different classes of shares or stock to be paid proportionately.

15. The amount of all moneys which the Undertakers may borrow and secure by mortgage of the undertaking shall not at any time exceed in the whole one-fourth of the amount of the capital of the Undertakers at the time

Borrowing powers.

A.D. 1904. actually raised by the issue of shares or stock including any premium that
Hedon Gas. may be obtained on the sale of any shares or stock under the provisions of
 this Order and except with the sanction of the Board of Trade no higher
 rate of interest than five pounds per centum per annum shall be paid by
 the Undertakers in respect of any moneys borrowed by them and secured
 as aforesaid after the commencement of this Order.

Purchase of Lands &c.

Additional
lands.

16. The Undertakers may for the purposes of the undertaking (by agreement but not otherwise) purchase or take on lease and hold in addition to the lands described in the Schedule A to this Order any lands which they may require. Provided that they shall not at any time hold for such purposes more than three acres of land in the whole in addition to the lands described in the said schedule and that they shall not create or permit a nuisance on any such lands. Provided also that no lands shall be used by the Undertakers for the purpose of manufacturing gas or residual products or of storing gas except the lands described in the said schedule.

*Maintenance and Continuance and Improvement of Existing Gasworks
 Construction of further Gasworks and Manufacture and Sale of Gas
 Coke and Residual Products.*

Undertakers
may maintain
and continue
gasworks on
lands described
in schedule
and may make
and sell gas &c.

17. The Undertakers on the lands (being the site of the existing gasworks) described in Part I. of the said Schedule A while they are possessed of the same may maintain and continue alter and enlarge retorts gas-holders receivers purifiers meters apparatus and works for the manufacture and storage of gas and of coke and other residual products obtained in the manufacture of gas and matters producible therefrom and they may also on the land described in Part II. of the said Schedule A while they are possessed of the same construct erect and maintain alter and enlarge gas-holders receivers meters apparatus and works for the storage of gas and of coke and other residual products obtained in the manufacture of gas and matters producible therefrom and they may subject to the provisions of this Order upon the said lands make and store gas and they may supply and sell the gas within the limits of supply subject to the provisions of this Order and may upon the said lands manufacture and store coal-tar coke pitch asphaltum and ammoniacal liquor oil and all other residual products obtained in the manufacture of gas and matters producible therefrom and may sell and dispose of the same at their works and elsewhere and may also deal in and sell lime at their works and elsewhere and they may construct and maintain alter extend enlarge and renew or discontinue houses offices buildings and other works connected with the gas undertaking by this Order authorised.

For protection
of North
Eastern Rail-
way Company.

18. All works to be constructed by the Undertakers in the exercise of any powers conferred by this Order in any way affecting the railway of the North Eastern Railway Company (in this section referred to as "the company") or any of the bridges or works thereof or any lands or property belonging to the company shall be constructed under the superintendence

and to the reasonable satisfaction of the principal engineer for the time being of the company and according to plans to be reasonably approved by him but in all things at the expense of the Undertakers and so as to cause no injury to such railway bridges works lands or property or interruption to the passage or conduct of traffic over such railway and if in consequence of the construction of such works any injury be caused to such railway bridges works lands or property or any interruption be caused to such traffic the Undertakers shall make full compensation to the company in respect of such injury or interruption the amount of such compensation failing agreement to be settled by arbitration in the manner provided for settling cases of disputed compensation by the Lands Clauses Consolidation Act 1845 with respect to the purchase and taking of lands otherwise than by agreement.

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Hedon Gas.

19. The Undertakers shall not cross or otherwise interfere with any sewer drain or watercourse or other works under the control or jurisdiction of His Majesty's Commissioners of Sewers for the east parts of the East Riding of the county of York otherwise than beneath the roadway over any bridge crossing any such sewer drain or watercourse but not below the crown of the arch of such bridge without first giving notice of their intention so to do to the said Commissioners of Sewers and all work in connexion with the said crossing or interference shall be carried out by the Undertakers in such a manner that all pipes shall be laid at such depths and in such positions as the said Commissioners of Sewers shall approve and all work shall be carried out in an expeditious manner and so as not to interrupt the free passage of the water and the said sewer drain watercourse and other work so crossed or otherwise interfered with shall be reinstated by the Undertakers and left in a proper condition to the satisfaction of the surveyor for the time being to the said Commissioners of Sewers And the Undertakers will make good any damage they may occasion to any such sewer drain watercourse or other work and will indemnify the said Commissioners of Sewers in respect thereof.

For protection
of Commis-
sioners of
Sewers.

20. The Undertakers shall not without the consent of the Humber Conservancy Commissioners interfere with any portion of the foreshore or bed of the River Humber.

For protection
of Humber
Conservancy
Commis-
sioners.

21. If any difference arise between the Undertakers and any railway or other company whose lands or works the Undertakers have power to cross under the authority of this Order as to the mode of laying down repairing altering or enlarging their mains pipes or other works in over or upon such lands or works or the facilities to be afforded for the same the same shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Differences
with railway
and other
companies.

22. The Undertakers with the consent of the owner and occupier of any building may lay any gas pipe branch or any other necessary apparatus from any main or branch pipe into through or against such building for the

Undertakers
may lay pipes
against build-
ings.

A.D. 1904.
Hedon Gas.

purpose of lighting it and may with the like consent provide and set up any apparatus necessary for securing to such building a proper and complete supply of gas and for measuring and ascertaining the extent of such supply and may from time to time with the like consent repair replace alter discontinue and remove any such pipe branch or apparatus.

Power in relation to gas meters &c.

23. The Undertakers may at their works or elsewhere purchase or hire and supply sell or let on hire but shall not manufacture gas meters fittings gas stoves and cooking and other apparatus and may also contract for doing and may execute work in connexion with but shall not manufacture fittings tubes meters pipes apparatus stoves ranges and apparatus for heating for domestic and other purposes by means of gas and all articles and things in any way connected with gasworks or with the supply of gas and may take charges and remuneration in respect thereof.

Power to take licences for patents.

24. The Undertakers may subject to the provisions of this Order (but only for the purposes of the undertaking within the limits of supply and not so as to acquire any exclusive right therein) contract for take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent heretofore made or hereafter to be made granting any right or privilege of working using or vending any invention in relation to the manufacture or distribution of gas or the conversion manufacture or utilisation of any products obtainable in or arising from such manufacture or from materials used therein.

Quality of Gas.

Quality of gas.

25. The quality of the gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce a light equal in intensity to the light produced by not less than fourteen sperm candles and shall in all respects be in accordance with the provisions of the Gasworks Clauses Act 1871.

Price of Gas.

Price of gas.

26. The price to be charged by the Undertakers for gas supplied by them shall not exceed four shillings and sixpence per thousand cubic feet and so in proportion for any less quantity supplied Provided that at any time after the expiration of three years from the commencement of this Order the Board of Trade may if they think fit by order in writing to be signed by a secretary or assistant secretary of the said Board alter the said maximum price either by substituting any other sum for the said sum of four shillings and sixpence or by giving a standard price with sliding scale as to profits and as from the date specified in such order (herein-after referred to as "the specified date") the price to be charged by the Undertakers for gas supplied by them shall be in accordance with such order Provided further that in case such order shall prescribe a standard price with sliding scale as to profits then as from the specified date the provisions set forth in Schedule B to this Order annexed shall be in force and have effect and this

Order shall be read and construed accordingly A copy of such order made by the Board of Trade shall be published in the London Gazette and a copy of the said Gazette containing such order shall be conclusive evidence of the due making and validity of the same and of the contents thereof.

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Hedon Gas.

Pressure of Gas.

27. All gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance from midnight to sunset a column of water not less than six-tenths of an inch in height and to balance from sunset to midnight a column of water not less than eight-tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer.

Pressure of
gas.

Testing of Gas.

28. The Undertakers shall within six months after the commencement of this Order cause to be provided at their works a testing place with apparatus therein according to the provisions of the Gasworks Clauses Act 1871 and before commencing to supply gas from any other works after the expiration of the said period of six months they shall at such works provide a similar testing place with similar apparatus and the burner to be used for testing gas shall be a Sugg's London Argand No. 1 with a six-inch by one-and-three-quarter-inch glass chimney and if at any time the gas flame tails over the top of the glass a six-inch by two-inch chimney shall be used Provided that any other description of burner may be used which may for the time being be approved for the purpose by the Board of Trade and any gas examiner appointed under the Gasworks Clauses Act 1871 for the purposes of this Order may subject to the terms of his appointment at such testing place or elsewhere as and when he thinks fit test the pressure at which the gas is supplied and for that purpose may open any street road passage or place not being the immediate approach to any railway or canal bridge or railway station vested in or under the control of any local or road authority.

Testing.

Miscellaneous.

29. No penalty shall be incurred by the Undertakers for insufficiency of pressure defect of illuminating power or for excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by unavoidable cause or accident.

No penalty in
case of un-
avoidable
cause.

30. Where any money is deposited by any person by way of security with the Undertakers for the payment to them of any moneys which may become due to them by such person in respect of any supply of gas or of the purchase or hire of any meter the Undertakers shall pay interest at the rate of five pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands,

Undertakers to
pay interest on
deposit.

A.D. 1904.

Hedon Gas.

Power to contract for sale of gas in bulk.

31. The Undertakers may contract with any local authority company or persons beyond the limits of supply (but only with the consent in writing of the local authority company or person supplying gas under parliamentary powers within the district within which the supply is to be afforded) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon.

Period of error in defective meters.

32. In the event of any gas meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the last preceding quarter of the year unless it be proved to have first arisen during the current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in like manner as gas rents are recoverable.

Power to refuse to supply persons in debt for other property.

33. If a person requiring a supply of gas from the Undertakers has previously quitted premises at which gas was supplied to him by them without paying to them all gas or meter rent or other moneys due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pay the same.

Notice of discontinuance.

34. Twenty-four hours notice in writing shall be given to the Undertakers by every consumer of gas supplied by the Undertakers before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be stated in every demand note for gas rent payable to the Undertakers.

Incorporation of s. 140 of 8 Vict. c. 16.

35. Section 140 of the Companies Clauses Consolidation Act 1845 shall be and is hereby incorporated with this Order. Provided that for the purpose of such incorporation the expression "the company" in the said section shall be construed to mean the Undertakers.

Costs of Order.

36. All the costs charges and expenses of and incidental to the application for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

The SCHEDULES referred to in the foregoing Order.

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Hedon Gas.

SCHEDULE A.

PART I.

EXISTING GAS LANDS.

A piece or parcel of land in the borough of Hedon being the site of the existing gasworks containing by admeasurement six hundred and thirty-three square yards or thereabouts which said piece or parcel of ground is bounded on the north by lands of the North Eastern Railway Company on the east by a piece of ground formerly forming part of an old road or lane on the south by other lands of the said North Eastern Railway Company and on the west in part by a new road called the "Back Lane" and in the remaining part by the Hedon and Hull turnpike road.

PART II.

ADDITIONAL GAS LANDS.

A piece or parcel of land in the parish of Preston being part of the field numbered 115 on the Ordnance map (scale $\frac{1}{25000}$) Edition 1890 of the said parish and included within the following boundary (that is to say):—

A line commencing in the centre of the ditch or drain at the eastern side of the existing gasworks forming the boundary between the parishes of Hedon and Preston at a point in the southern boundary fence of the North Eastern Railway thence running along the said fence in an easterly direction for a distance of eighty yards thence running in a southerly direction parallel to the said ditch or drain for a distance of forty-one yards six inches thence running in a westerly direction parallel with the said railway fence to the centre of the said ditch or drain thence running in a northerly direction along the centre of the said ditch or drain to the point of commencement.

SCHEDULE B.

The foregoing Order shall after the making by the Board of Trade of an order in pursuance of the provisions in that behalf therein contained prescribing a standard price for gas supplied by the Undertakers with sliding

A.D. 1904. scale as to profits and as from the specified date be read and construed subject to the modifications following :—

Hedon Gas.

Sections 30 to 34 of Gasworks Clauses Act 1847 to cease to be incorporated.

- (1) Sections 30 to 34 (both inclusive) of the Gasworks Clauses Act 1847 shall not continue to be incorporated with or to form part of the foregoing Order and in construing the said Act for the purposes of the foregoing Order section 35 of the said Act shall be read and construed as though the words from "in case the whole" down to "have been paid" all inclusive had been omitted therefrom and as though the expression "the prescribed rate" included the prescribed rates as defined by the foregoing Order together with any sum which under the provisions of this schedule might lawfully be carried to the insurance fund :

Price of gas with sliding scale as to dividend.

- (2) Notwithstanding anything contained in the foregoing Order the standard price to be charged by the Undertakers for gas supplied by them to private consumers by meter shall be the price prescribed by such order of the Board of Trade as aforesaid per thousand cubic feet :

Provided that the Undertakers may increase or reduce the price so charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Undertakers on the ordinary share capital or stock as follows :—

In respect of any year during any part of which the price charged by the Undertakers shall have been one penny or part of a penny above the standard price the dividend payable by the Undertakers shall in respect of each penny or part of a penny by which the price shall have been increased be reduced below the standard rate of dividend by five shillings on every one hundred pounds of ordinary paid up capital with a ten per centum standard rate of dividend and three shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a seven per centum standard rate of dividend and so on in proportion for any fraction of one hundred pounds ;

And in respect of any year during the whole of which the price charged by the Undertakers shall have been one penny or more below the standard price the dividend payable by the Undertakers may in respect of each penny by which the standard price has been reduced be increased above the standard rate by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and three shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a seven per centum standard rate of dividend and so on in proportion for any fraction of one hundred pounds :

- (3) If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the prescribed rates the excess beyond the sum necessary for that purpose may to the extent of one per centum per annum upon the paid-up capital of the Undertakers be invested in Government or other securities and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth part of the paid-up capital of the Undertakers which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Undertakers from accident strike or other circumstance which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said limit as often as such reduction happens. Provided that when and so often as the said fund reaches the said limit of one twentieth part of the paid-up capital the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that resort may be had to the insurance fund to meet any such extraordinary claim demand or charge as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-twentieth as aforesaid :

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Hedon Gas.

If profits exceed amount limited excess may be invested and form an insurance fund.

- (4) If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the prescribed rates the excess or such portion of it as is not carried to the insurance fund shall be carried to the credit of the divisible profits of the undertaking for the next following year :

Application of further excess of profits over prescribed rates.

- (5) Where in any year the prescribed rates on the ordinary share capital or stock of the Undertakers exceed the standard rate by reason of the price charged by the Undertakers for gas in such year being below the standard price then out of the amount of the divisible profits of the Undertakers applicable to the payment of such excess of dividends the Undertakers may in such year set apart such sum as they think fit by way of a reserve fund and all sums (if any) so set apart by the Undertakers and any reserve or other fund of a similar character of the Undertakers existing at the specified date in relation to the undertaking may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Undertakers shall be insufficient to enable the Undertakers in such year to pay the

Power to create a reserve fund and application thereof.

A.D. 1904.

*Hedon Gas.*Saving of exist-
ing contracts.

prescribed rates and save as by this schedule specially provided no sum shall in respect of the undertaking in any year be carried by the Undertakers to any reserve fund :

- (6) Nothing in this schedule contained shall alter vary or affect any contract or agreement duly made or any liability incurred or notice given before the specified date with respect to the gasworks or the supply of gas by the Undertakers.

NORTHAMPTON GAS.

*Northampton
Gas.*

Order empowering the Northampton Gaslight Company to raise Additional Capital for the purposes of their undertaking and for other purposes.

Preliminary.

Short title.

1. This Order may be cited as the Northampton Gas Order 1904.

Commence-
ment of Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Construction
of Order.

3. The Northampton Gasworks Act 1858 (in this Order referred to as "the Act of 1858") the Northampton Gas Order 1871 (in this Order referred to as "the Order of 1871") and the Northampton Gas Act 1887 (in this Order referred to as "the Act of 1887") as amended by this Order and this Order shall be construed together except so far as such construction would be inconsistent with or repugnant to the provisions of this Order.

Incorporation
of Acts.

4. So far as the same relate to the powers conferred by this Order the provisions of the Companies Clauses Consolidation Act 1845 with respect to the several matters following (that is to say):—

The distribution of the capital of the Company into shares ;
The transfer or transmission of shares ;
The payment of subscriptions and the means of enforcing the payment of calls ;
The forfeiture of shares for non-payment of calls ;
The remedies of creditors of the Company against the shareholders ;
The borrowing of money by the Company on mortgage or bond ;
The consolidation of the shares into stock ;
The general meetings of the Company and the exercise of the right of voting by the shareholders ;
The making of dividends ;
The giving of notices ; and
The provisions to be made for affording access to the special Act by all parties interested ;

and Part I. (relating to the cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of

the Companies Clauses Act 1863 and the Companies Clauses Act 1869 the Gasworks Clauses Act 1847 and the Gasworks Clauses Act 1871 are (except where expressly varied by this Order) incorporated with and form part of this Order.

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Northampton
Gas.

For the purposes of such incorporation the term "special Act" in the said Acts respectively shall be construed to include this Order and the term "the company" shall mean the Undertakers.

Undertakers.

5. The Northampton Gaslight Company shall be the undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Capital.

6. In addition to the capital already authorised to be raised by the Undertakers under the Act of 1858 the Order of 1871 and the Act of 1887 (in this Order referred to as "the existing capital") the Undertakers may—

Additional
capital.

- (1) Raise any further sums not exceeding in the whole one hundred thousand pounds by the issue of new ordinary shares or stock or new preference shares or stock or wholly or partly by any one or more of those modes respectively (in this Order referred to as "the additional capital") but the Undertakers shall not issue any share under the authority of this Order of less nominal value than ten pounds nor shall any such share or any stock issued under the authority of this Order vest in the person accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof as herein-after provided has been paid in respect thereof. Provided that it shall not be lawful for the Undertakers to create and issue under the powers of this Order any greater nominal amount of capital than will be sufficient to produce including any premiums which may be obtained on the sale thereof the sum of one hundred thousand pounds:
- (2) Borrow on mortgage in respect of the additional capital by this Order authorised to be raised by the issue of ordinary or preference shares or stock aforesaid any sum or sums not exceeding in the whole one-fourth part of the amount payable in respect of such additional capital at the time actually issued including the premiums (if any) realised on the sale thereof but no part thereof shall be borrowed until shares or stock for so much of the additional capital in respect of which such borrowing powers are sought to be exercised together with the premiums (if any) realised on the sale thereof have been fully paid up and the Undertakers have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares or stock and premiums

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(if any) have been fully paid up and upon production to such justice of the books of the Undertakers and such other evidence as he may think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

As to con-
version of bor-
rowed money
into capital.

7. The Undertakers shall not have power to raise the money by this Order authorised to be borrowed on mortgage or by the issue of debenture stock or any part thereof by the creation of shares or stock instead of borrowing or to convert into capital the amount borrowed under the provisions of this Order.

Except as
otherwise pro-
vided new
shares to be
subject to
same incidents
as other
shares.

8.—(1) Except as by this Order otherwise provided the additional capital created by the Undertakers under this Order shall form part for all purposes of the general capital of the Undertakers called "E shares" and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to all the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if such additional capital were part of the general capital of the Undertakers called "E shares" and as if the new shares or stock were shares or stock in that capital.

(2) If the Undertakers at any time hereafter put into force the powers contained in the Act of 1887 for the conversion of capital into stock they may in order to give full effect thereto create such a further nominal amount of consolidated stock as shall be necessary for that purpose and the powers of the said Act shall extend to all shares and stock in existence at the time of conversion.

(3) In every case where under the provisions of the Act of 1887 or this Order a holder of existing shares of the Undertakers would be entitled to any fractional part of a pound of consolidated stock the Undertakers shall not be bound to register such fractional part of a pound of stock but may at their option pay to such holder such a sum in cash as shall be equal to the market value of such fractional part or receive from such holder such a sum in cash as will make up the amount of stock to be vested in him to an integral number of pounds and the amount of capital stock vesting in such holder shall thereupon be reduced or increased accordingly and the directors may raise the money necessary to enable the Undertakers to make such cash payment as aforesaid by the issue and sale from time to time of such an amount of consolidated stock as may be requisite in that behalf.

Restrictions as
to votes in
respect of pre-
ferential shares
or stock.

9. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

Dividends on
new shares or
stock.

10. Every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the capital of the Undertakers and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole

amount from time to time called and paid on such new shares or to the whole amount of such stock as the case may be.

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Northampton
*Gas.*Profits of
Undertakers
on additional
capital limited.

11. The Undertakers shall not in any year declare or make out of their profits any larger dividends on the additional capital than seven pounds in respect of every one hundred pounds actually paid up (exclusive of premiums) of so much of the additional capital as may be issued as ordinary capital or five pounds in respect of every one hundred pounds actually paid up as aforesaid of so much of the additional capital as may be issued as preference capital.

12. In case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of the prescribed rate of dividend on each class of ordinary shares or stock of the Undertakers a proportionate reduction shall be made in the dividends payable on each class other than preference shares or stock. Provided that nothing in this section shall prejudice the right of the Undertakers to resort to their reserve fund to answer any deficiencies which may at any time have arisen in the dividends of the Undertakers.

Dividends on
different classes
of ordinary
shares or stock
to be paid pro-
portionately.

13. The Undertakers shall when any shares or stock created under the powers of this Order are to be issued and before offering the same to the holder of any other shares or stock of the Undertakers and whether the ordinary shares or ordinary stock of the Undertakers are or is at a premium or not offer the same for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers may determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal value thereof and notice of the amount of such reserved price shall be sent by the Undertakers in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock of the Undertakers except that if the bidding or offer by tender made by any holder of shares or stock be the same in amount as the bidding or offer by tender made by any other person the bidding or offer of such holder shall be accepted in preference.

New shares or
stock to be
offered by auc-
tion or tender.

14. It shall be one of the conditions of any sale of shares or stock under this Order that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Undertakers within six months after such sale.

Purchase
money of
shares or stock
to be paid
within six
months.

15. The intention to sell any shares or stock by auction or tender under the provisions of this Order shall be communicated by the Undertakers in writing to the town clerk of the county borough of Northampton and to the clerk of every district council whose district is wholly or partially

Notice to be
given as to sale
of shares or
stock.

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included within the limits of supply and to the Secretary of the Committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised by the Undertakers once in each of two consecutive weeks in one or more newspapers circulating within the limits of supply.

Disposal of
shares or stock
not sold by
auction or
tender.

16. When any shares or stock created under the provisions of this Order shall have been offered for sale by auction or by tender under the provisions of this Order and not sold the same may be disposed of by the directors at a price not less than the reserved price put upon the same for the purpose of sale by auction or tender or may be offered at such reserved price to the holders of the ordinary shares or ordinary stock of the Undertakers in the manner prescribed by the Companies Clauses Act 1863 or to employees of the Undertakers or to the consumers of gas supplied by the Undertakers or their other customers or partly to one and partly to another or others. Provided always that any shares or stock not so disposed of or so offered and not accepted within the time prescribed by the said Act or in the case of shares or stock offered to such employees or consumers and customers within the time limited by the directors of the Undertakers shall again be offered for sale by public auction or tender in the manner and subject to the provisions of this Order with respect to the sale of shares or stock forming part of the additional capital and the reserve put upon such shares or stock may upon such second or any subsequent auction or tender if the directors of the Undertakers think fit be less than the nominal value thereof and any shares or stock not then sold may be disposed of by the directors or be again offered to the holders of ordinary shares or ordinary stock or such employees or consumers and customers at not less than the last-mentioned reserved price and so on until the whole amount of such shares or stock is sold.

Application
of premium
arising on
issue of shares
or stock.

17. Any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Undertakers but shall be expended in extending or improving the works of the Undertakers or in paying off money borrowed or owing on mortgage by the Undertakers or for other purposes to which capital is properly applicable nevertheless the same shall not be considered as part of the capital of the Undertakers entitled to dividend. Provided that all such sums shall be deemed to be part of the paid-up capital of the Undertakers for the purpose of determining the amount which the Undertakers may borrow under this Order and the amount which the Undertakers may invest to form a reserve fund. Provided also that for the purpose of determining the amount which the Undertakers may invest to form a reserve fund any sums of money received by way of premium upon the issue of shares or stock forming part of the capital authorised by the Act of 1887 shall be deemed to be part of the paid-up capital of the Undertakers.

18. The Undertakers may create and issue mortgages debentures or debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein or in any Act previous to this Order contained the interest of all debentures or debenture stock and of all mortgages at any time after the commencement of this Order created and issued or granted by the Undertakers under any previous Act or this Order or any subsequent Act or Order shall (subject to the provisions of any subsequent Act or Order) rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament Orders or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

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—
Northampton
Gas.
Debenture
stock.

19. The Undertakers shall not without the consent of the Board of Trade pay interest at a higher rate than five pounds per centum per annum in respect of any money borrowed on mortgage or raised by the creation and issue of debentures or debenture stock under the authority of this Order.

Limit of
interest on
borrowed
money.

20. All moneys raised under this Order whether by shares stock debenture stock or borrowing shall be applied only to the general purposes of the Undertakers being in all cases purposes to which capital is properly applicable.

Application of
moneys.

Miscellaneous.

21. In order to enable the Undertakers to insure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

As to construc-
tion and
placing of
pipes &c.
between mains
and meters.

- (1) The Undertakers may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Undertakers' mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:
- (2) The Undertakers may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published once in each of two newspapers circulating in the limits of supply of the Undertakers and a copy thereof shall be kept exhibited in the office of the Undertakers:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Undertakers' main but within the outside wall of the building:
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Undertakers and the pipe shall not be covered over until the expiration of twenty-four

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hours from the service of such notice on the Undertakers Any officer of the Undertakers duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Undertakers' specification or if the meter is not placed as required by this section the Undertakers may refuse to supply gas to the premises until the provisions of this section have been complied with :

- (6) Any person to whom the Undertakers refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Undertakers' specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Fittings let for
hire not subject
to distress.

22. No gas engines gas stoves fittings articles and things (in this section called "fittings") connected with the supply or use of gas let for hire by the Undertakers shall be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

Anti-fluctua-
tors for gas
engines.

23. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Gas consumers
to give notice
to Undertakers
before leaving.

24. Twenty-four hours notice in writing shall be given to the Undertakers by every gas consumer before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier shall require the Undertakers to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed on every demand note for gas rent payable to the Undertakers.

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25. A notice to the Undertakers from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Undertakers.

Northampton Gas.
Notice of discontinuance.

26. If a person requiring a supply of gas from the Undertakers occupies or has occupied other premises at which gas was supplied to him by the Undertakers and has not paid all gas or meter rent or other moneys due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pays the same.

Power to refuse to supply persons in debt for other premises.

27. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Undertakers.

Period of error in defective meters.

28. No penalty shall be incurred by the Undertakers for neglect or refusal to give a supply of gas in accordance with the provisions of the Acts relating to the Undertakers and this Order or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognisance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Undertakers. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Undertakers.

No penalty in case of unavoidable cause.

29. The Undertakers may but only with the consent of the owner of the soil of such street or road upon the application of the owner or occupier of any premises abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay and take up alter relay or renew in across or along such street or road such pipes as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to lay pipes in streets not dedicated to public use.

30. The Undertakers may if they think fit allow discounts or rebates to consumers of gas or other customers of the Undertakers in consideration of prompt payment of gas rents or other debts or large consumption not exceeding in any case fifteen per centum upon such scale and subject to such conditions and regulations as may be prescribed by the Undertakers. Provided that all discounts or rebates shall be of equal amount under like circumstances to all consumers.

Discounts.

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*Northampton
Gas.*Contracts not
to disqualify
for office of
director.

31. Any contract to be made with any board corporation company or public body shall not disqualify any of the members of any such board corporation company or public body for the office of director of the Undertakers but no director being a member of any such board corporation company or public body shall vote on any question as to any contract with such board corporation company or public body.

Number and
qualifications
of auditors.

32.—(1) The prescribed number of auditors shall be two or any greater number that may be ordered by resolution of a general meeting Provided that if the Undertakers think fit they may appoint one or more chartered accountants to act in place of such prescribed number of auditors.

(2) It shall not be necessary for the auditors to hold shares or stock in the capital of the Undertakers.

Remuneration
of secretary.

33. The directors of the Undertakers shall have power without the sanction of a general meeting to fix alter increase reduce or otherwise determine as to the remuneration of the secretary of the Undertakers.

Undertakers
may acquire
patent rights.

34. The Undertakers may acquire hold and use patent rights or licences not being exclusive for the use of inventions in relation to the manufacture of gas or in relation to the distribution or supply of gas and also in relation to the manufacture conversion or utilisation of residual products and materials arising in or resulting from the manufacture of gas.

Undertakers
may contract
with local
authority for
supply in bulk.

35. The Undertakers may contract with any local authority company or person beyond the Undertakers' limits of supply (but only with the consent in writing of the local authority of and of any company or person supplying gas under parliamentary powers within the district within which the supply is to be given) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon.

Costs of Order.

36. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

ROCHFORD GAS.

Rochford Gas. Order authorising the maintenance and continuance of existing gasworks at Rochford in the county of Essex the construction of further works on adjacent land and the manufacture and supply of gas.

Short title.

1. This Order may be cited as the Rochford Gas Order 1904.

Commence-
ment of Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) of the Gasworks Clauses Act 1847 and of the Gasworks Clauses Act 1871 are hereby incorporated with this Order except where the same are expressly varied by this Order and the said provisions of the said Gasworks Clauses Acts shall apply as well to the mains pipes and works of the Undertakers laid down or constructed before the commencement of this Order and situate within the limits of supply as defined by this Order as to any mains pipes or works which may be laid down or constructed under the authority of this Order.

A.D. 1904.
Rochford Gas.
Incorporation
of Acts.

4. The several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings and for the purpose of the incorporation of any such Act the expression "the undertaking" in such Act shall include the gasworks and works connected therewith by this Order authorised to be maintained and continued and extended.

Interpretation.

5. The limits within which the provisions of this Order shall be in force and have effect (in this Order referred to as "the limits of supply") shall be the parish of Rochford so much of the parish of Eastwood as lies east of the Southend branch of the Great Eastern Railway so much of the parish of Hawkwell as is bounded on the north by the road leading northward and eastward from Saint Mary's Church and across the Southend Branch Railway to the Rochford parish boundary on the east and south by the Rochford parish boundary and on the west by the Southend branch of the Great Eastern Railway and so much of the parish of Little Stambridge as is bounded on the north by the Stambridge Road on the east by Mill Lane (being the road leading from the said Stambridge Road to Stambridge Mills) and on the south and west by the parish boundary all in the county of Essex.

Limits of
Order.

Undertakers.

6. Eliza Asbey William Taylor Meeson Elizabeth Wood and George Wood their heirs executors administrators and assigns shall be the undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers" Provided that if at any time the undertaking is assigned to any other body company or person such body company or person shall from the date of such assignment be the Undertakers for the purposes of this Order in lieu of the person or persons above-mentioned but no such assignment shall have any validity or effect until after the approval of the Board of Trade to such assignment has been signified in writing signed by a secretary or assistant secretary of the said Board Provided that nothing in this Order contained shall prevent the Undertakers borrowing money on the security of mortgages of the undertaking or shall make the consent or approval of the Board of Trade necessary to the validity or effect of any such mortgage.

Undertakers.

A.D. 1904.

*Capital.**Rochford Gas.*
Capital.

7. The capital of the Undertakers shall not for the purposes of the undertaking authorised by this Order exceed ten thousand pounds unless the Undertakers are hereafter authorised to raise additional capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

Limit of profits.

8. The Undertakers shall not in any year make out of their profits any larger dividend than seven pounds in respect of every one hundred pounds actually expended for the time being upon the undertaking by this Order authorised to be maintained continued or constructed.

Purchase of Lands &c.

Power to purchase lands by agreement.

9. The Undertakers may for the purposes of the gas undertaking (by agreement but not otherwise) purchase or take on lease and hold in addition to the lands described in the schedule to this Order annexed any lands and hereditaments not exceeding in the whole three acres which the Undertakers may require for the purposes of such undertaking. Provided that the Undertakers shall not create or permit a nuisance on any such lands and that no lands shall be used by the Undertakers for the purpose of manufacturing gas or residual products except the lands described in the schedule to this Order annexed.

Maintenance and Continuance of Existing Gasworks Construction of New Works and Manufacture and Sale of Gas Coke and Residual Products.

Undertakers may make and maintain and continue gasworks on lands described in schedule and may make and sell gas &c.

10. The Undertakers on the land (being the site of the existing gasworks) shown on the map deposited for the purposes of this Order and described in Part I. of the schedule to this Order annexed while they are possessed of the same may maintain and continue alter and enlarge retorts gasholders receivers purifiers meters apparatus and works for the manufacture and storage of gas and of coke and other residual products obtained in the manufacture of gas and matters producible therefrom and they may also on the land shown on the deposited map and described in Part II. of the schedule to this Order annexed while they are possessed of the same construct erect and maintain alter and enlarge retorts gasholders receivers purifiers meters apparatus and works for the manufacture and storage of gas and residual products and they may subject to the provisions of this Order upon the said lands make and store gas and supply and sell the same within the limits of supply and may manufacture coal-tar coke pitch asphaltum and ammoniacal liquor oil and all other residual products obtained in the manufacture of gas and matters producible therefrom and may store the same and may sell and dispose of the same at their works and elsewhere and may also deal in and sell lime at their works and elsewhere and they may construct and maintain alter extend enlarge and renew or discontinue houses offices buildings and other works connected with the gas undertaking by this Order authorised.

11. All mains and pipes hereafter to be laid as extensions of the existing mains or pipes by the Undertakers under or across any roadway within the rural district of Rochford shall unless otherwise agreed between the Undertakers and the road authority be laid at such a depth that not less than two feet six inches shall intervene between the upper side of such mains or pipes and the upper surface of the said roadway.

A.D. 1904.

Rochford Gas.
Depth at which
mains and pipes
to be laid.

12. The Undertakers may purchase hire supply sell or let on hire but shall not manufacture gas meters fittings gas stoves and cooking and other apparatus and may also purchase hire sell let or deal in and contract for doing and execute work in connexion with but shall not manufacture fittings tubes meters pipes apparatus stoves ranges and apparatus for heating for domestic and other purposes by means of gas and all articles and things in any way connected with gasworks or with the supply use or consumption of gas and may take charges and remuneration in respect thereof.

Power to sup-
ply gas meters
&c.

13. The Undertakers may subject to the provisions of this Order (but only for the purposes of their gas undertaking authorised by this Order within the limits of supply and not so as to acquire any exclusive right therein) contract for take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent heretofore made or hereafter to be made granting any right or privilege of working using or vending any invention in relation to the manufacture production and distribution of gas or the conversion manufacture or utilisation of any products obtainable in or arising from such manufacture or production or from the materials used therein.

Power to take
licences for
patents.

Quality of Gas.

14. The quality of the gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce a light equal in intensity to the light produced by not less than fourteen sperm candles and shall in all respects be in accordance with the provisions of the Gasworks Clauses Act 1871.

Quality of gas.

Price of Gas.

15. The price to be charged by the Undertakers for gas supplied by them shall not exceed five shillings and ninepence per thousand cubic feet and so on in proportion for any less quantity supplied. Provided that at any time after the expiration of five years from the commencement of this Order the Board of Trade may if they think fit by order in writing signed by a secretary or an assistant secretary of the said Board alter the said maximum price by substituting any other sum for the said sum of five shillings and ninepence and as from the date specified in such order the price to be charged by the Undertakers for gas supplied by them shall be in accordance with such order. A copy of any such order shall be published in the London Gazette and a copy of the said Gazette containing such order shall be conclusive evidence of the due making and validity of the same and of the contents thereof.

Fixing maxi-
mum price of
gas.

A.D. 1904.

*Pressure of Gas.**Rochford Gas.*Pressure of
gas.

16. All gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance from midnight to sunset a column of water not less than six-tenths of an inch in height and to balance from sunset to midnight a column of water not less than eight-tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer.

Testing of Gas.

Testing of gas.

17. The Undertakers shall within six months after the commencement of this Order cause to be provided at the works and shall thereafter maintain a testing place with apparatus therein according to the provisions of the Gasworks Clauses Act 1871 and the burner to be used for testing gas shall be a Sugg's London Argand No. 1 with a six-inch by one-and-three-quarter-inch glass chimney and if at any time the gas flame tails over the top of the glass a six-inch by two-inch chimney shall be used. Provided that any other description of burner may be used which may for the time being be approved for the purpose by the Board of Trade and any gas examiner appointed under the Gasworks Clauses Act 1871 for the purposes of this Order may subject to the terms of his appointment at such testing place or elsewhere as and when he thinks fit test the pressure at which the gas is supplied and for that purpose may open any street road passage or place not being the immediate approach to any railway or canal bridge or railway station vested in or under the control of any local or road authority.

*Miscellaneous.*No penalty in
case of un-
avoidable
cause.

18. No penalty shall be incurred by the Undertakers for insufficiency of pressure defect of illuminating power or for excess of impurity in the gas supplied by them in any case in which it is proved that such insufficiency defect or excess was caused by an unavoidable cause or accident.

Undertakers
to pay interest
on deposit.

19. Where any money is deposited by any person by way of security with the Undertakers for the payment to them of all moneys which may become due to them by such person in respect of any supply of gas or of the purchase or hire of any meter the Undertakers shall pay interest at the rate of five pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Power to con-
tract for sale of
gas in bulk.

20. The Undertakers may contract with any local authority company or persons beyond the limits of supply (but only with the consent in writing of the local authority of and of any company or person supplying gas under parliamentary powers within the district within which the supply is to be given) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon.

21. Twenty-four hours' notice shall be given to the Undertakers by every gas consumer before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be stated in every demand note for gas rent payable to the Undertakers.

A.D. 1904.

Rochford Gas.
Gas consumers
to give notice
to Undertakers
before re-
moving.

22. A notice to the Undertakers from the consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Undertakers.

Notice of dis-
continuance.

23. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the last preceding quarter of the year unless it be proved to have first arisen during the current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in like manner as gas rents are recoverable.

Period of error
in defective
meters.

24. If a person requiring a supply of gas has previously quitted premises at which gas was supplied to him by the Undertakers without paying all gas or meter rent or rents for stoves or other apparatus due from him the Undertakers may refuse to furnish to him a supply of gas until he pays the same.

Power to refuse
to supply per-
sons in debt
for other
property.

25. Nothing in this Order contained shall alter vary or affect any contract or agreement duly made or any liability incurred before the commencement of this Order.

Saving of
existing con-
tracts &c.

26. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers out of the capital raised under this Order.

Costs of Order.

SCHEDULE.

PART I.

SITE OF EXISTING GASWORKS.

A piece or parcel of land situate in the parish and rural district of Rochford in the county of Essex containing by admeasurement one rood or thereabouts and bounded on the north by East Street on the south by

A.D. 1904. a meadow belonging or reputed to belong to William Quay's Trustees on the
Rochford Gas. west partly by the meadow aforesaid and partly by cottages and gardens
 belonging or reputed to belong to Samuel Brunwin's Trustees and on the
 east by buildings and premises belonging or reputed to belong to John and
 Walter Allen.

PART II.

ADDITIONAL LAND FOR GASWORKS.

A piece or parcel of land containing by admeasurement half an acre
 or thereabouts bounded on the north by cottages and gardens belonging or
 reputed to belong to George Wood and Elizabeth Wood on the south and
 west by a meadow also belonging or reputed to belong to them and on the
 east by land belonging or reputed to belong to Philip Sach Silas Pledger and
 Ernest Copland Gray.

ROMFORD GAS.

Romford Gas. *Order empowering the Romford Gas and Coke Company Limited
 to raise additional capital to continue and maintain additional
 works and for other purposes.*

Short title. 1. This Order may be cited as the Romford Gas Order 1904.

Commence-
ment of Order. 2. This Order shall come into force and have effect upon the day when
 the Act confirming this Order is passed which date is in this Order referred
 to as "the commencement of this Order."

Construction
of Order. 3. The Romford Gas Order 1874 (in this Order referred to as "the
 Order of 1874") the Romford Gas Order 1889 (in this Order referred to as
 "the Order of 1889") the Romford Gas Order 1900 (in this Order referred
 to as "the Order of 1900") and this Order shall be construed together
 except so far as such construction would be inconsistent with or repugnant
 to the provisions of this Order and in this Order the expression "the
 undertaking" means the undertaking authorised by the Order of 1874 as
 amended by the Order of 1889 the Order of 1900 and this Order.

Incorporation
of Acts. 4. The provisions of the Lands Clauses Acts (except with respect to the
 purchase and taking of lands otherwise than by agreement and with respect
 to the entry upon lands by the Promoters of the undertaking) of the Gas-
 works Clauses Act 1847 and of the Gasworks Clauses Act 1871 are hereby
 incorporated with this Order (except where the same are expressly varied by
 the Order of 1874 the Order of 1889 or this Order) and form part of this
 Order For the purposes of such incorporation the term "special Act" in the
 said Acts shall be construed to mean this Order and "the Company" shall
 mean the Undertakers.

Undertakers.

A.D. 1904.

5. The Romford Gas and Coke Company Limited shall be the undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Romford Gas.
Undertakers

New Capital.

6. The limitation prescribed by the Order of 1874 as amended and extended by the Order of 1889 and the Order of 1900 with respect to the amount of the share capital of the Undertakers for the purposes of the undertaking shall not prevent the Undertakers from raising for such purposes further share capital (in this Order referred to as "the additional new capital") not exceeding fifty thousand pounds including any premium that may be obtained on the sale of any shares under the provisions of this Order. Provided that the share capital of the Undertakers for the purposes of their undertaking shall not exceed in the whole one hundred thousand pounds unless the Undertakers are hereafter authorised to raise further share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

New capital.

7. The Undertakers shall when any shares or stock created under the powers of this Order are or is to be issued and before offering the same to the holders of any other shares or stock of the Undertakers and whether the ordinary shares or ordinary stock of the Undertakers are or is at a premium or not offer the same for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers may by special resolution determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal value thereof and notice of the amount of such reserved price shall be sent by the Undertakers in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock of the Undertakers except that if the bidding or offer by tender of any holder of shares or stock be the same in amount as the bidding or offer made by any other person for the same lot the bidding or offer of such holder shall be accepted in preference.

New shares or
stock to be
offered by auc-
tion or tender.

8. It shall be one of the conditions of any sale of shares or stock under the provisions of this Order that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Undertakers within three months after such sale.

Purchase
money of capi-
tal sold to be
paid within
three months.

9. The intention to sell any shares or stock by auction or tender under the provisions of this Order shall be communicated by the Undertakers in writing to the clerk of every local authority having jurisdiction within the

Notice to be
given of sale
of shares or
stock.

A.D. 1904. limits of supply and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised by the Undertakers once in each of two consecutive weeks in one or more newspapers circulating within the limits of supply.

Shares or stock not sold by auction or tender to be offered to holders of ordinary shares or stock.

10. When any shares or stock have been offered for sale by auction or tender under the provisions of this Order and not sold the same may be disposed of by the directors of the Undertakers at a price not less than the reserved price put upon the same respectively for the purpose of sale by auction or tender or may be offered at such reserved price to the holders of the ordinary shares or ordinary stock of the Undertakers in such manner as may be prescribed by a special resolution passed by the Undertakers. Provided that any shares or stock not so disposed of or so offered and not accepted within the time prescribed by such resolution shall again be offered for sale by public auction or tender in the manner and subject to the provisions of this Order with respect to the sale of shares or stock forming part of the additional new capital and the reserve put upon such shares or stock may upon such second or any subsequent offer for sale by auction or tender if the directors of the Undertakers think fit be less than the nominal value thereof and any shares or stock not then sold may be disposed of by the directors or offered to the holders of ordinary shares or ordinary stock at not less than the last-mentioned reserved price and so on until the whole of such shares or stock is sold.

Application of premium arising on issue of shares or stock.

11. Any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Undertakers but shall be expended in extending or improving the works of the Undertakers or in paying off money borrowed or owing on mortgage by the Undertakers and shall not be considered as part of the capital of the Undertakers entitled to dividend.

Limits of dividend on new capital.

12. Except as by section 26 of the Order of 1889 expressly provided the Undertakers shall not in any year declare or make out of their profits any larger dividends on the additional new capital than seven pounds in respect of every one hundred pounds actually paid up of so much of the additional new capital as may be issued as ordinary capital or five pounds in respect of every one hundred pounds actually paid up of so much of the additional new capital as may be issued as preference capital.

Dividends on different classes of shares or stock to be paid proportionately.

13. In case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of the prescribed rates on each class of ordinary shares or stock in the existing and additional new capital a proportionate reduction shall be made in the dividends payable on each class.

14. The amount of all moneys borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole one-third of the amount of the capital of the Undertakers for the purposes of the undertaking actually raised by the issue of shares or stock including any premium that may be obtained on the sale of any shares or stock under the provisions of this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid. A.D. 1904.
Romford Gas.
Limit of borrowing powers.
15. All moneys raised under this Order shall be applied to the purposes of the undertaking to which capital is properly applicable. Application of moneys.
16. The Undertakers may for the purposes of the undertaking purchase or take on lease by agreement but not otherwise and hold in addition to the lands respectively described in the schedules to the Order of 1889 and this Order and any other lands which by the Order of 1889 they are authorised to acquire by agreement any lands and hereditaments not exceeding in the whole ten acres which the Undertakers may require for the purposes of their works and undertaking Provided that no lands shall be used by the Undertakers for the purposes of manufacturing gas or residual products except the lands described in the first part of the schedule to the Order of 1889. Power to purchase lands by agreement
17. Subject to the provisions of this Order the Undertakers may upon the lands described in the schedule to this Order while they are in possession of the same continue maintain alter improve enlarge extend renew or discontinue the gasholder and other works already or now being erected upon such lands and may also upon such lands construct erect make and maintain alter and enlarge gasholders receivers meters apparatus and works for the storage of gas and of coke and other residual products obtained in the manufacture of gas and matters producible therefrom and they may subject to the provisions of this Order store gas on such lands and may supply and sell the same within the limits of supply and may on the same lands store coal-tar coke pitch asphaltum and ammoniacal liquor oil and all such other residual products as aforesaid and may sell and dispose of the same and may also deal in and sell lime at the works and elsewhere and they may also construct and maintain alter enlarge renew or discontinue houses offices buildings and other works connected with the undertaking. Sanction of existing works for storage of gas and powers as to construction of other such works.
18. All the costs charges and expenses of and incidental to the applying for obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers. Costs of Order

A.D. 1904.

Romford Gas.

SCHEDULE.

Lands in the parish and urban district of Romford in the county of Essex containing two roods or thereabouts adjoining and on the west side of the lands belonging or reputed to belong to the Undertakers and described in the first part of the schedule to the Order of 1889 upon which the gasworks of the Undertakers now stand and which lands so to be used for the storage of gas are bounded on or towards the north by the embankment and railway and on the west by other lands of the Great Eastern Railway Company and on the south by lands belonging or reputed to belong to Emily Mary Surridge Margaret Clara Surridge and Helen Laura Surridge and on the east by the aforesaid lands belonging to the Undertakers.

Printed by EYRE and SPOTTISWOODE,

FOR

T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
EYRE AND SPOTTISWOODE, EAST HARDING STREET, FLEET STREET, E.C.; or
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